

eldest son, to be vested at 21 (*a*), with an ultimate trust in favour of John (*b*).

In another case (*c*) a testatrix devised real and personal estate to trustees in trust for A. for life, with remainders over in tail. A peerage was afterwards granted to A. for life with remainder to B., her second son, in tail male; and then the testatrix, by a codicil directed the trustees to settle the real and personal estate "in a course of entail to correspond as nearly as might be with the limitations of the barony, in such manner and form and with such powers as the trustees should consider proper or their counsel should advise," and it was held that the object of making provision for the holders of a peerage, and the object of making provision for the children of a marriage, appeared so analogous, that it was the duty of the Court, in the former as well as the latter case, to prevent, as far as possible, the defeat of the object; and accordingly the real estate was directed to be settled on A.'s second son for life, without impeachment of waste, with remainders to his first and other sons in tail male, &c., with power to the tenant for life of jointuring and charging portions; and the personal estate was directed to be settled so as to go along with the real estate in the nature of heir-looms, so far as the rules of law and equity would allow, but so as not to vest in any tenant in tail by purchase who died under 21 without leaving issue inheritable under the entail.

[A bequest of chattels to a peer and his successors, or to a peer and his successors to be enjoyed with and to go with the title, is not sufficient to create an executory trust or any binding obligation affecting the legatee (*d*). So under a bequest of chattels to trustees "upon trust to permit and suffer the property to go, and be held and enjoyed with the title and honours of Exmouth, so far as the rules of law and equity will admit, by the person for the time being actually possessed of the title in the nature of heir-looms," the first person who succeeds to the honours takes the chattels

(*a*) *Shelly v. Shelly*, 6 L. R. Eq. 540. *Holmesdale*, 4 L. R. H. L. 543; reversing *West v. Viscount Holmesdale*,

(*b*) S. C. 6 L. R. Eq. 550. 3 L. R. Eq. 474.

(*c*) *Sackville-West v. Viscount* [(*d*) *Re Johnston*, 26 Ch. D. 538.]